सीमाशुल्क आयुक्त (आयात) का कार्यालय
OFFICE OF THE COMMISSIONER OF CUSTOMS (IMPORT),
मुंबई ज़ोन -III, जन संपर्क अनुभाग, हवाई माल संकुल
MUMBAI ZONE – III, PRO CELL, AIR CARGO COMPLEX,
सहार, अंधेरी (पूर्व), मुंबई- ४०० ०९९
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F.No. S/3-MISC-PRO-516/2013 ACC(I) Part 7 **Date: 28.06.2021**

MINUTES OF THE PERMANENT TRADE FACILITATION COMMITTEE MEETING HELD ON 28.05.2021

The monthly meeting of the Permanent Trade Facilitation Committee (PTFC) for Air Cargo Complex, Sahar, was held on 28.05.2021 at 03.30 pm which was chaired by Shri S. Anantha Krishnan, Commissioner of Customs (Export/Import). In view of the government advisory regarding "social distancing" and preference for eschewing avoidable movements to combat the threat of Covid-19, the meeting was conducted via Web Conference.

The following officers and representatives of various stakeholders participated in the meeting:

Name & designation	**Organization**
Shri M. K. Sarangi, Addl. Commissioner (Import)	Customs, ACC, Mumbai
Shri Vishal M. Sanap, Addl. Commissioner (Import)	Customs, ACC, Mumbai
Shri K.C. Kala, Addl. Commissioner (Export)	Customs, ACC, Mumbai
Shri Amit Kumar Sharma, Jt. Commissioner (General)	Customs, ACC, Mumbai
Shri Sudhakar Pandey, Jt. Commissioner (Export)	Customs, ACC, Mumbai
Sh. Sukant Chaudhary, Deputy Director	FSSAI, ACC, Mumbai
Name of attendees of stakeholders	**Organization**
Shri Dushyant Mulani, Shri Sanjeev Harale, Shri Ketan Desai	BCBA
Shri Bala Ayer	ACAAI
Shri Manoj Singh, Sh. Ashok	MIAL
Sh. Kamlesh C. Sawant, Sh. Errol D'souza	AIATSL
Shri Mark Fernandes	MSF Bombay
Shri Rishikesh	Siemens Healthcare
Shri Vasudevan, Shri Gaurav Dogar	DHL Express
Shri Jayesh Parab	MACCIA
Shri Venkatraman	DHL Logistics
Shri Newton Fernandes	All Nippon Airlines
Shri Kiran Panbude	Collector of Stamps
Shri Harish Zade	Lufthansa Cargo
Shri Zubin	Cathay Pacific

Other attendees		
Smt. Chaitaly Mehta	Smt. Vaishali Kulkarni	Shri Lynn Bothello
Shri Sorab P Engineer	Shri Kaushal Thakkar	Shri Paresh Sangani

At the outset, Commissioner of Customs (Import/Export) welcomed the members of Trade, Customs Broker Associations, Representatives of Airlines/Custodian, and other stakeholders present for the virtual meeting.

Following agenda points were taken up:

A. OPEN POINTS FROM LAST PTFC MEETING HELD ON 30.04.2021

1. In case of multiple queries in a single BE, importers/CBs are unable to see the query status of early query and reply given thereof since past 15 days. Earlier, this was visible since inception of EDI. BCBA requested to represent with DG systems to restore this query module for linking all the queries. **(Import)**

Additional Commissioner (EDI) stated that they have sent the reminder to the DG systems regarding the same and is following up for the reply from them. Commissioner (Import) directed the BCBA to forward the representation for the said issue and assured the trade that the same will be taken up with the Chief Commissioner of Customs, Zone – III for early solution.

(Point Open)
Action by : BCBA

2) 24 x 7 Working for RMS Consignments vide ACC PN No 48/2020 dated 21.2020 is not being operative due to Console agents and Airlines not given online Delivery Orders. All other stakeholders, such as Customs, Custodian, Custom Brokers, Transporters, Stamp duty etc. are operating to follow the endeavour of CBIC for 24 x 7 clearance of RMS facilitated consignments. **(Import)**

Suggestion: In this regard, the Console Agents and Airlines are requested to support directives of CBIC in order to facilitate RMS deliveries.

Commissioner (General) directed BCBA to give representation in this regard giving specific instances where airlines refused to give delivery orders timely even after payment of applicable freight charges. The same will be scrutinized and addressed accordingly.

(Point Closed)

3. BCBA appreciated the process adopted by ADC, Mumbai for giving NOC to consignments and requested to increase the bandwidth of the Asst. Drug Controller system so that the NOC can be released in ICES itself.

Additional Commissioner (EDI) informed that they have taken up the matter with DG systems for increasing the bandwidth so that the NOC can be released in ICES itself. Sh. Dushyant Mulani of BCBA appreciated the parallel process adopted by Asst. Drug Controller, Mumbai where ADC office receives the Import/Export documents via e-mail and after scrutinizing them, ADC NOC is given online. He also informed that the same practice has been adopted by other customs stations also.

(Point Closed)

4. Sh. R.G. Meena, officer from Regional Plant Quarantine Station, informed that the timeline for NOC depends on the type of commodity as for the fresh goods: 48 hours, plants: 1-2 days, 3 days (with fumigation), etc. To this, Commissioner (I) directed ADC(I) to explore the possibility of providing a link on ACC website regarding provisions, Do's & Don'ts and rules pertaining to PGAs as a facilitation measure for the trade.

ADC, Import informed the members that they have not received any information regarding the same from any of the PGAs till date. He assured the trade that as soon as they receive the required information from the PGAs, the same will be compiled and the link will be provided.

(Point Open)
Action By: PGAs

5. **Non transmission of data in IDPMS / EDPMS** **(Customs)**

We request to provide mechanism to transfer the data under IDPMS / EDPMS in cases of complaints received for non-transmission.

ADC (I) informed the members that they have written to the DG systems for providing a role for re-transmitting the bills of entry to RBI on parallel lines as provided for Shipping Bills.

(Point Closed)

6. To enhance the digital working at Air Cargo Complex, Mumbai hard copy of MAWB COPY should be sought by MIAL in digital form from Airlines instead of manual hard copy. With Airlines / Consolidators working from home, it is delaying clearance of consignments, hence considering the lockdown and COVID pandemic, we suggest that online digital process be worked out immediately. **(MIAL)**

Sh. Manoj Singh of MIAL informed the members that the matter has been taken up and they are in the process of devising an online platform regarding the same.

(Point Closed)

FRESH AGENDA POINTS:

POINT RAISED BY BCBA:

1) Delay in Assessment of the Bills of Entry (Import)

Trade is facing considerable difficulty due to delay in assessment of bill of entry. In many cases beyond 24 hours has become normal, this is affecting dwell time for clearance substantially and also resulting in payment of demurrage and detention charges.

We request to bring time wise accountability for completion of Assessment within 1 day of submission

Commissioner (Import) assured the members that the matter will be taken up with National Assessment Committee which looks after the FAGs and the solution will be devised accordingly.

(Point Closed)

2) Parallel manual process for Amendments to be discontinued (Import)

At present trade is losing considerable time in parallel manual process in vogue for carrying out amendments and taking signature from table to table.

Suggestion: We suggest that all kind of amendments such as enlisted below should be made online

a) Part shipment:
Module to be created in Custom EDI System to clear the part shipment. Subsequently shipment when landed to provide the data entry and OOC for final clearance.

b) Short shipment

c) Prior to final Bill of Entry

d) Change in AWB number

This is one of the important factors for rush at the PAG locations. We suggest that all amendments should be carried out in time bound manner in ICES / ICEGATE platforms.

Additional Commissioner (EDI) informed the members that the online amendments are being provided for (c) & (d) above, vide ACC(I) public notice no. 34/2021 dated 27.05.2021. Commissioner (I) further assured the trade that the issues at (a) & (b) above will be examined on merit as revenue angle is involved in it.

(Point Closed)
Action By: ADC, EDI

3) Online payment of fees for IGST refund (Export)

Exporters are required to pay Rs. 1000/- towards completion of IGST refund formalities in terms of CBIC Circular No 05/2021 – Customs dated 17.2.2021. We request that an online payment of such dues may kindly be introduced.

Sh. Kaushal Thakkar suggested that online payment of fees be introduced on parallel lines as done by Audit department, NCH, Zone-1. Commissioner (Export) directed JC, Export to take note of the same and get in touch with NCH for devising the same method for ACC, Mumbai.

(Point Open)
Action By: JC, Export

4) **Delay in clearance due to problems faced with Air India (Air India)**

Trade and industry is facing tremendous delay in clearance of import and export consignments at ACC Mumbai due to lack of infrastructure, manpower and equipments. Past several year trade has been representing these issues regarding lack of proper service and supervision at Air India shed to various authorities. Please refer to our Letter Ref. BCBA/SH/15:191/2021 dated 24.5.2021.

We seek your urgent intervention under Handling of Cargo in Customs Area Regulation 2009 in larger interest of EXIM trade at ACC Mumbai.

Sh. Errol D'souza, Sh. Abdul Gaffar and Sh. Kamlesh Sawant of AIATSL agreed to look into the matter & assured BCBA that the matter will be resolved on priority.

(Point Closed)

5) **Some Senior officer should be present at Air India shed (Air India)**

There is no senior position in Air India available to monitor the performance of Fork Lift operators and loaders which is leading to delay in clearance.

We request that some Senior officer from Air India should be present to resolve day to day queries of members.

Sh. Errol D'souza informed the members that he and Sh. Kamlesh Sawant is always available for the trade in case of any issue dealt by them in the Air India Shed.

(Point Closed)

6) **Any other point with permission of the chair**

POINTS RAISED BY ACAAI

EXPORT

1. Pharma products is the mainstay of exports from ACC Mumbai. There are several four star export houses coupled with their AEO Tier II and Tier III status. Sir, there are many pharma products which are packed in special climatic conditions in the respective factory. They are then sealed and the seal numbers of each drum / package, is sent to the consignee. At time of receiving the consignment, the consignee verifies the seals and makes sure they are all intact and only then accepts the whole consignment. Any break of one seal will mean the rejection of the whole shipment. The consignees fear contamination of the pharma product because they think somebody has opened the consignment. At the assessment stage of the shipping bill, the assessment officer puts in a remark "Open and examine" on the shipping bill. This causes alarm to the exporter due to the above reasons.

We request that pharma products which are packed under special climatic conditions in the factory may not be opened for examination. We suggest this may be made applicable to Star House Exporters, AEO Certified, etc. only. With each shipment, the shipper will give one letter addressed to customs giving the reason why this should not be opened.

Commissioner (Import) informed the members that if 'Open & Examine' order is given by the RMCC department, Customs cannot override the same. However, in such cases, Customs may write to the RMCC department for considering the request of exporter (Star House Exporters/AEO certified etc.) based on the genuineness of the case. However the final decision rests with RMCC department in such cases. Secondly, if the instructions for 'Open & Examine' is given by the Appraising Officer, the same may be override by the DC, Shed after considering the genuineness of the case. So, the exporter may approach DC, Shed in such circumstances.

(Point Closed)

2. Below is another point which was recently raised in the PTFC meeting at JNPT. We would like to raise this point at this forum as well.

EDI Shipping Bills from Customs to the airlines.

a) A provision should be made to share Electronics PDF Shipping bill data with the airlines. There is a good chance that this will reduce the EGM errors and expedite IGST refund process as well.
b) This will also confirm to the airline that all shipping bills under one airway bill has been authorized by customs to uplift for export.
c) Manual print out of electronic PDF shipping bill documents should not be allowed in normal cases when the customs online system is working perfectly.

ADC, Export appreciated the point raised above as it will be beneficial. Commissioner (Export) assured the members that the matter will be examined and taken up with DG systems on merit.

(Point Open)
Action By: ADC, Export

Commissioner (Import/Export) further asked the members for any other query related to Customs Clearance at ACC, Mumbai. Sh. Mark Fernandes requested to depute a regular officer of WCCB at ACC, Mumbai for fast clearances as they have to take the sample for WCCB NOC to their office at Belapur. To this, Sh. B.S. Khatti of WCCB assured the members that he will take up the matter with Regional Deputy Director, WCCB and an officer will be deputed in ACC, Mumbai positively from June, 2021. Further, Sh. Fernandes requested to consider the test reports of other customs ports for clearance of similar items at ACC, Mumbai. To this, Commissioner (Import) directed ADC, Import to take note of the same and examine the matter on merits.

The meeting ended with thanks to the Chair.

This is issued with the approval of Commissioner of Customs (General /Import/ Export), Mumbai Customs Zone-III.

(M.K. Sarangi)
Addl. Commissioner of Customs (Import)
Air Cargo Complex, Mumbai

COPY TO:

1. Chief Commissioner of Customs, Zone-III, Mumbai - For kind information, please.
2. Pr. Commissioner / Commissioner of Customs, Import / Export / General, ACC.
3. All Addl./Jt./DC/AC Commissioner of Customs, Import / Export / General, ACC.
4. All members of PTFC meeting (via E-mail)
5. E &T Section/PSO Section for circulation in Export/General Commissionerate.
6. EDI Section- For uploading on ACC Website.
7. Asst. Drug Controller, ACC, Sahar.
8. Office copy. discussion